



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUN 25 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10399
(THIRD REVISION)

EXPIRATION DATE: May 31, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: U.S. Department of Defense
Washington, DC
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of a specific device described as Rocket ammunition with smoke projectile, classed as a Class 1 (Division 1.2G) explosive. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.56, 175.3, 177.801.
5. BASIS: This exemption is based on the application of the Department of Defense dated May 29, 1998, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammunition, smoke (Rocket 2.75" MK 66, MOD 1 W/M274 practice warhead)	1.2G	UN0015	II

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7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging is as prescribed in section 173.60.
- b. The smoke composition contained in the warhead may not exceed 75 grams of explosive.
- c. Transportation must be by DOD approved motor vehicle munitions carriers and by cargo air carriers authorized by exemption to carry Class 1 (Division 1.1 thru 1.3) explosives.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
- c. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- d. MARKING - Packages must be marked "Rocket ammunition with smoke projectile."
- e. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo only aircraft.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

Alan I. Roberts
for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Docket Section, 202 366-5046.

Dist: FHWA, FAA, USCG, FRA
PO: ALB